

Prevention of Sexual Harassment (POSH) Policy

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1. Purpose and legal basis

Zuqah Technologies is committed to providing a safe, respectful and dignified workplace for every employee, regardless of gender. Sexual harassment is a violation of a person's dignity and a barrier to equal participation at work.

This policy is issued in compliance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ("the POSH Act") and the rules framed thereunder. It applies in addition to, not instead of, any rights available under applicable law.

Every employee has a right to work in an environment free from sexual harassment. Zuqah Technologies takes all complaints seriously and will act swiftly and impartially on every report.

2. Scope

This policy applies to:

- All permanent employees, part-time employees, probationers and trainees
- Contract staff, interns, apprentices and freelancers working on Zuqah

Technologies premises or on Zuqah Technologies assignments

- Clients, vendors and visitors while on Zuqah Technologies premises or in connection with Zuqah Technologies work
- Any person whose employment with Zuqah Technologies has been terminated, to the extent that the complaint relates to conduct that occurred during their employment

The policy covers conduct at:

- The office and any other Zuqah Technologies premises
- Remote working locations when conducting Zuqah Technologies work
- Business travel and client sites
- Company-sponsored events, offsites, conferences and social gatherings
- Online — email, messaging platforms, video calls and social media used in

a professional context

3. What constitutes sexual harassment

Sexual harassment includes any unwelcome act or behaviour of a sexual nature, whether direct or implied, that creates an intimidating, hostile or offensive work environment, or interferes with an employee's ability to do their job.

3.1 Explicit forms

- Physical contact or advances of a sexual nature
- A demand or request for sexual favours
- Showing pornography or sexually explicit material
- Any other unwelcome physical, verbal or non-verbal conduct of a sexual nature

3.2 Circumstances that constitute sexual harassment

Under the POSH Act, sexual harassment also includes circumstances where:

- Implied or explicit promise of preferential treatment in employment is made in exchange for sexual favours
- Implied or explicit threat of detrimental treatment is made for refusing sexual favours
- Implied or explicit threat about the present or future employment status is made
- Humiliating treatment likely to affect health or safety is carried out

3.3 Examples — not an exhaustive list

The following are examples of conduct that may constitute sexual harassment:

Verbal: sexual jokes, comments about a person's body or appearance, sexually loaded language, innuendo, propositions, asking about someone's sexual history or preferences

Non-verbal: leering, whistling, obscene gestures, sending sexually explicit images or messages, following someone around

Physical: unwanted touching (including on the shoulder, arm or hair), brushing against a person unnecessarily, blocking someone's path

Digital: sexually explicit messages on any platform (Teams, WhatsApp, email, social media), sharing intimate images without consent

Behaviour need not be intentional to constitute sexual harassment. The test is whether a reasonable person in the complainant's position would have experienced it as unwelcome.

4. Internal Complaints Committee (ICC)

Zuqah Technologies has constituted an Internal Complaints Committee ("ICC") as required under Section 4 of the POSH Act.

4.1 Composition

Role	Requirement
Presiding Officer	A woman employed at a senior level in the organisation
Employee members	At least two employees, preferably persons committed to the cause of women
External member	One person from an NGO, association or person familiar with issues relating to sexual harassment

The ICC must have at least four members. At least half of the members must be women.

Current ICC members are listed in the HR portal under People → ICC Members.

4.2 Term

ICC members serve for a period of three years and may be reappointed.

4.3 Quorum

An inquiry may proceed with a minimum of three members present, including the Presiding Officer.

5. How to raise a complaint

5.1 Who can complain

Any woman who has experienced sexual harassment at the workplace, as defined in this policy, may file a complaint with the ICC. Where the aggrieved woman is unable to make a complaint herself due to physical incapacity, mental incapacity or death, her legal heir or such other person as prescribed may file a complaint on her behalf.

Men who have experienced sexual harassment are encouraged to report to the Presiding Officer, who will ensure appropriate action is taken under Zuqah Technologies' Code of Conduct and applicable law.

5.2 Time limit

A complaint must be filed within three months of the date of the last incident. The ICC may extend this period by a further three months if it is satisfied that exceptional circumstances prevented the complainant from filing within the original period.

5.3 How to file

A written complaint must be submitted to any member of the ICC. The complaint should describe:

- The nature of the behaviour
- The date(s) and location(s) of the incident(s)
- The name of the respondent
- The names of any witnesses, if applicable

In person: Submit to any ICC member. Contact details are in the HR portal.

By email: icc@zuqahtechnologies.com (accessible only to ICC members)

Anonymous option: Where a complainant is unwilling to be identified, they may submit a concern through the Speak Up channel described in the Whistleblower Policy. The ICC will investigate as far as possible without identifying the complainant.

5.4 Interim relief

At any point during the inquiry, the ICC may recommend, on request of the complainant:

- Transfer of the respondent or the complainant to a different team or location
- Grant of leave to the complainant of up to three months (in addition to any other leave entitlement)
- Any other interim measure necessary to ensure the complainant can continue to work safely

6. Inquiry process

6.1 Conciliation

Before initiating an inquiry, the ICC may, at the complainant's written request, take steps to settle the matter through conciliation. No monetary settlement shall be made the basis of conciliation. If a settlement is reached, the ICC shall record it and forward copies to the employer, and no further inquiry shall be conducted.

If the complainant is not satisfied with the conciliation, the ICC shall proceed to inquiry.

6.2 Inquiry

The ICC shall conduct the inquiry in accordance with the principles of natural justice. The respondent will be given a copy of the complaint and an opportunity to respond.

Both parties may present witnesses and documentary evidence. Neither party may be assisted by a lawyer during the inquiry proceedings.

The respondent and the complainant shall be given an opportunity to cross-examine each other's witnesses.

6.3 Timeline

Stage	Deadline
Acknowledge complaint	Within 7 days
Begin inquiry	Within 7 days of receipt of complaint
Complete inquiry and submit report	Within 90 days

Stage	Deadline
Employer to act on ICC recommendations	Within 60 days

7. Outcome and action

7.1 If the complaint is upheld

The ICC will recommend one or more of the following to Zuqah Technologies:

- Written apology
- Warning or reprimand
- Withholding of promotion, pay increment or bonus
- Suspension (with or without pay)
- Termination of employment
- Counselling or sensitisation training for the respondent
- Filing of a criminal complaint under applicable law

7.2 If the complaint is not upheld

No adverse action will be taken against either party solely on the basis that a complaint was not upheld.

7.3 False or malicious complaints

If the ICC concludes that a complaint was filed with malicious intent and with full knowledge that it was false, it may recommend action against the complainant under Zuqah Technologies' disciplinary procedure. This provision shall not apply to a case where a complaint cannot be proved due to lack of evidence.

8. Confidentiality

All proceedings, findings, recommendations and settlements under this policy are strictly confidential. The following obligations apply to all parties:

- The names of the complainant, respondent and witnesses may not be disclosed
- The ICC inquiry report may not be shared outside the committee and relevant management
- No party to the complaint may discuss the matter with colleagues or on any platform
- Media contact regarding any complaint is prohibited

Breach of confidentiality is a disciplinary offence.

9. Protection from retaliation

Zuqah Technologies strictly prohibits any retaliation against a person who:

- Has filed a complaint in good faith
- Has cooperated in an ICC inquiry
- Has reported a witnessed incident of sexual harassment

Retaliation includes demotion, transfer, negative performance review, exclusion, or any other adverse employment action connected to the complaint. Any retaliation shall be treated as a serious disciplinary offence.

10. Annual training

All employees must complete POSH awareness training within 30 days of joining and annually thereafter. Training completion is recorded in the HR portal.

Zuqah Technologies will conduct at least one sensitisation workshop per year open to all employees.

11. Annual report

The ICC will prepare an annual report and submit it to Zuqah Technologies management and the District Officer as required under the POSH Act. The report includes the number of cases filed, disposed of and pending.

12. Employer responsibilities

Zuqah Technologies as employer will:

- Provide a safe working environment
- Display the penal consequences of sexual harassment and the order constituting the ICC at a conspicuous place in the workplace
- Organise workshops and awareness programmes
- Treat complaints as confidential
- Provide assistance to the ICC, including information and space to conduct proceedings
- Monitor the timely submission of ICC reports

13. Contact

For questions about this policy, to file a complaint or to report a concern about a colleague:

ICC: icc@zuqahtechnologies.com

People Operations: people@zuqahtechnologies.com

Anonymous Speak Up channel: See Whistleblower and Speak Up Policy

Sample content for demonstration purposes. Zuqah Technologies is a fictional company and this document describes no real organisation's policy.